

Ishwar Dayal v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 18 December 2018 · WRIT - C No. - 41977 of 2018 · **Writ disposed; liberty to seek instalments from the Executive Engineer under cl. 6.14.**

HEADNOTE

A consumer facing recovery of electricity dues who is willing to pay if time and instalments are allowed may approach the Executive Engineer under clause 6.14 of the U.P. Electricity Supply Code, 2005. The writ was disposed of with that liberty; if so approached, the Executive Engineer is to consider the application in accordance with clause 6.14, simplistically and most expeditiously, if possible within one month.

FACTUAL SUMMARY

Ishwar Dayal filed a writ against Dakshinanchal Vidyut Vitran Nigam Ltd. challenging a recovery certificate dated 28 August 2018 under which Rs. 2,20,60 was sought as electricity dues. He did not contest the dues. Counsel submitted that he was ready and willing to pay the entire amount if time were allowed and instalments fixed. After hearing counsel for the petitioner and for respondent Nos. 1 to 3, the Division Bench disposed of the petition on that footing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalments of electricity dues

HOLDING

A consumer who does not dispute electricity dues but seeks time and instalments to pay a recovery certificate may approach the Executive Engineer under clause 6.14 of the U.P. Electricity Supply Code, 2005. The writ was disposed of with liberty to so apply; if approached, the Executive Engineer shall consider the application in accordance with clause 6.14, simplistically and most expeditiously, if possible within one month. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 A consumer facing recovery of electricity dues who is willing to pay if time and instalments are allowed may approach the Executive Engineer under clause 6.14 of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 28.08.2018 AND THE QUANTUM OF ELECTRICITY DUES

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